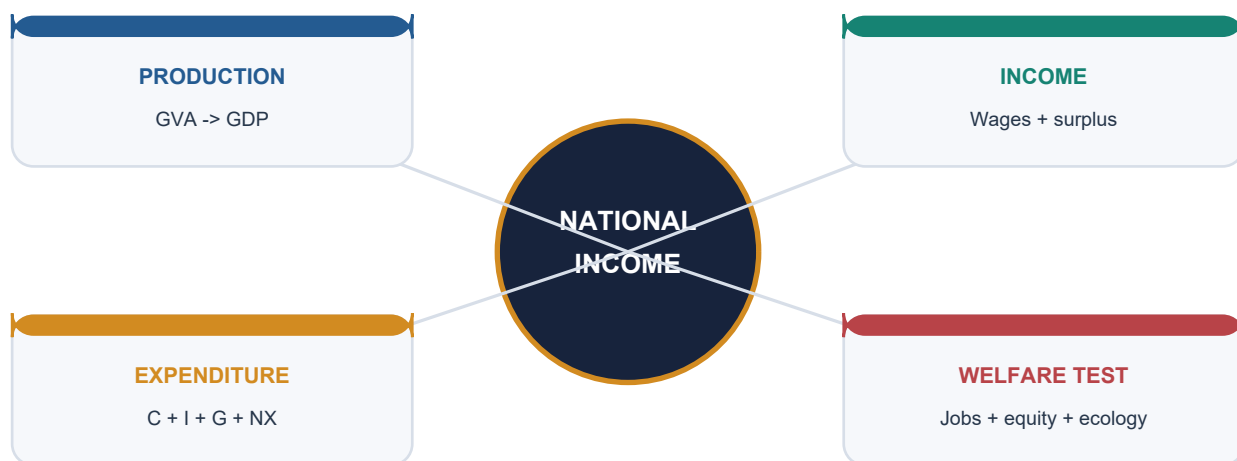


Polity 42 — Anti-Defection Law

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing



Deterministic fallback visual: national income viewed through production, income, expenditure and welfare lenses.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

Polity 42 — Anti-Defection Law

Anti-Defection PYQ and Practice Workbook

[FACT] Audited local routing identifies two direct Prelims demands and one cross-owned Mains demand relevant to this package.

[LIMIT] The routed ledgers preserve neutral demand summaries, not full official wording. No wording is reconstructed. No official answer letter is claimed where the ledger does not record it.

Visual 71 — Verified PYQ Route Map

Year	Stage	Q	Verified neutral demand	Key/wording control
2022	Prelims GS-I	16	nominated legislators under anti-defection law	key unavailable locally
2025	Prelims GS-I	88	Tenth Schedule disqualification and mention of political party	official key file exists; answer letter not recorded
2023	Mains GS-II	5	role of State presiding officers in order and impartial conduct	10 marks, 150 words

Caption: The package solves the concepts without inventing missing official keys or wording.

Routed Prelims PYQ 1 — 2022 GS-I Q16

Verified neutral demand: Anti-defection provisions for nominated legislators.

Source status: Key unavailable locally; exact official wording is not reconstructed.

Concept resolution — not an officially verified answer letter

- [FACT] A nominated member who is already a party member at nomination is deemed to belong to that party.
- [FACT] A nominated member who is not then a party member may join a party before expiry of six months from taking the seat.
- [FACT] Joining after that six-month period triggers paragraph 2(3) disqualification.
- [LIMIT] The rule differs from an independent elected member, who is disqualified on joining any party after election.

Elimination method: Reject any statement saying “never”, “only after six months”, or giving an independent member the six-month window.

Confidence: High on the doctrine; no official option letter claimed.

Routed Prelims PYQ 2 — 2025 GS-I Q88

Verified neutral demand: Tenth Schedule disqualification and express mention of “political party”.

Source status: Official Set-A key file is present locally, but the routed ledger does not record the answer letter; no letter is claimed.

Concept resolution

- [FACT] Paragraph 2 repeatedly uses political party: the party that set up the elected candidate, the party membership voluntarily given up, and the party/person/authority issuing a direction.
- [FACT] Paragraph 1 separately defines legislature party and original political party.
- [FACT] *Subhash Desai* confirms that the political party, not a factional legislature party, appoints the authorised Whip and Leader.
- [LIMIT] The phrase “political party” does not mean the ECI becomes the paragraph 6 adjudicator.

Elimination method: Distinguish organisational party authority from the House-level group and from ECI's separate Symbols Order function.

Routed Mains PYQ — 2023 GS-II Q5

Verified neutral demand: Discuss the role of Presiding Officers of State legislatures in maintaining order and impartial conduct of business. **10 marks | 150 words**

Model solution

Thesis: [FACT] State presiding officers are procedural guardians whose powers over debate, discipline, voting and defection make impartiality a constitutional operating condition.

1. [CLAIM] They maintain orderly deliberation. [EVIDENCE] Articles 178-185 create the offices; House rules govern recognition, admissibility, discipline and voting. [ANALYSIS] fair allocation of speaking and motion time protects majority decision and opposition scrutiny. [LIMIT] broad procedural discretion requires consistent reasons.
2. [CLAIM] They perform high-impact constitutional functions. [EVIDENCE] Article 189 supplies the casting vote, Article 199 involves Money Bill certification, and paragraph 6 of the Tenth Schedule assigns defection adjudication. [ANALYSIS] these decisions can affect bicameral scrutiny and government survival. [LIMIT] political membership creates an appearance-of-bias risk.
3. [CLAIM] Judicial control supports impartiality. [EVIDENCE] *Kihoto Hollohan* treats the Speaker as a reviewable tribunal; *Keisham* requires reasonable-time decision-making. [ANALYSIS] legality and timeliness prevent procedure from becoming partisan strategy. [LIMIT] the proposed independent tribunal is not enacted.

Verdict: Impartiality should be institutionalised through reasoned rulings, equal procedure, timely decisions and neutral defection adjudication, not left to personal convention alone.

Why this earns marks: It connects functions to impartiality, uses Articles and cases, and avoids a generic list of Speaker powers.

Visual 72 — MCQ Rotation Plan

Q1 A -> Q2 B -> Q3 C -> Q4 D
repeat without interruption through Q48

Original MCQs: Q1-Q36
Remedials: Q37-Q48

Caption: The answer-key sequence is continuous across both practice blocks.

Original MCQs 1-36 — Strict Continuous A -> B -> C -> D Rotation

Q1. With reference to the 52nd Amendment, which statement is correct?

A. The Act is dated 15 February 1985, while the Tenth Schedule came into force on 1 March 1985. B. It amended only Articles 102 and 191. C. It came into force on 1 January 2004. D. It inserted the Ninth Schedule.

Answer: A.

Explanation: [FACT] The 52nd Amendment amended Articles 101, 102, 190 and 191 and inserted the Tenth Schedule; the official consolidation records effect from 1 March 1985.

Q2. “Legislature party” under paragraph 1 most accurately means:

A. the national executive of a political party. B. all members of that House who for the time being belong to that political party under the Schedule. C. only elected members, excluding nominated members. D. any faction supported by two-thirds of the House.

Answer: B.

Explanation: [FACT] It is a House-specific group. It is not the party organisation or any self-declared faction.

Q3. A nominated member who was not a party member at nomination:

A. can never join a party. B. may join only after six months. C. may join within six months from taking the seat without paragraph 2(3) disqualification. D. is treated exactly like an independent elected member.

Answer: C.

Explanation: [FACT] The first-six-month choice window is specific to the nominated member.

Q4. An independently elected member is disqualified if the member:

A. abstains on a non-whipped motion. B. criticises a political party. C. declines ministerial office. D. joins any political party after election.

Answer: D.

Explanation: [FACT] Paragraph 2(2) provides no six-month grace period.

Q5. Which best states Ravi S. Naik?

A. Voluntarily giving up membership may be inferred from conduct and is not confined to formal resignation. B. Only a written resignation can establish defection. C. ECI decides conduct-based defection. D. Expulsion automatically ends Tenth Schedule membership.

Answer: A.

Explanation: [FACT] The phrase is wider than formal resignation, though inference remains evidence- and context-dependent.

Q6. Paragraph 2(1)(b) requires, among other things:

A. a direction only from the legislature party. B. contrary vote/abstention without prior permission and no condonation within 15 days. C. a criminal conviction. D. a formal party resignation.

Answer: B.

Explanation: [FACT] Direction, contrary voting/abstention, no prior permission and no timely condonation form the textual chain.

Q7. After Subhash Desai, the authorised Whip for Tenth Schedule purposes is appointed by:

A. the Governor. B. the largest faction in the legislature party. C. the political party. D. the Election Commission.

Answer: C.

Explanation: [FACT] The political party, not merely the legislature party, appoints the Whip and Leader.

Q8. Which conduct is least capable, by itself, of establishing paragraph 2(1)(b)?

A. voting contrary to a valid direction. B. abstaining contrary to a valid direction. C. voting without prior permission and without condonation. D. making a dissenting speech without a contrary vote or abstention.

Answer: D.

Explanation: [LIMIT] The constitutional voting ground is not a general speech-control provision.

Q9. Paragraph 4 protection requires:

A. a merger framework and not less than two-thirds of the legislature party agreeing to the merger. B. one-third of the legislature party forming a faction. C. only a public statement by the defecting members. D. approval by the Governor.

Answer: A.

Explanation: [FACT] Two-thirds operates within paragraph 4's merger structure.

Q10. Paragraph 3 of the Tenth Schedule:

A. protects nominated members. B. was omitted by the 91st Amendment. C. gives ECI jurisdiction. D. creates judicial review.

Answer: B.

Explanation: [FACT] The former one-third split defence ceased with effect from 1 January 2004.

Q11. Paragraph 5 protection can apply to:

A. every minister. B. every committee chair. C. a listed Speaker/Deputy Speaker or Chairman/Deputy Chairman who satisfies the conditions. D. every constitutional officeholder.

Answer: C.

Explanation: [FACT] It is an exact office-and-condition exemption, not a general neutrality clause.

Q12. If the disqualification question concerns the Speaker:

A. the Governor decides. B. ECI decides. C. the Deputy Speaker automatically decides. D. a member elected by the House for that purpose decides.

Answer: D.

Explanation: [FACT] This is the proviso to paragraph 6(1).

Q13. The current legal effect of paragraph 7 is that:

A. its printed court-bar text remains, but it is invalid under *Kihoto* for want of ratification. B. it fully excludes judicial review. C. it was omitted by the 91st Amendment. D. it transfers jurisdiction to ECI.

Answer: A.

Explanation: [FACT] The official 2026 Constitution includes the text and the invalidity footnote.

Q14. Kihoto permits review for:

A. every factual disagreement as a full appeal. B. constitutional violation, mala fides, natural-justice breach and perversity. C. only delay. D. only a criminal offence.

Answer: B.

Explanation: [FACT] The review is limited to jurisdictional/constitutional infirmities.

Q15. Ordinary interlocutory court interference under Kihoto is:

A. mandatory in every petition. B. identical to appellate review. C. generally excluded, subject to grave and irreversible interlocutory consequences. D. controlled by ECI.

Answer: C.

Explanation: [FACT] The baseline protects first-instance Speaker adjudication while preserving a narrow exception.

Q16. On decision time, the Tenth Schedule:

A. fixes 15 days. B. fixes 30 days. C. fixes three months expressly. D. contains no express deadline.

Answer: D.

Explanation: [FACT] The three-month norm comes from *Keisham*, not the text.

Q17. Keisham Meghachandra Singh stated that, absent exceptional circumstances:

A. three months is the ordinary outer limit and Parliament should consider an independent tribunal. B. ECI must decide in 15 days. C. every petition must go directly to the Supreme Court. D. delay is wholly non-justiciable.

Answer: A.

Explanation: [FACT] The Court tied reasonable time to the Schedule's constitutional objective.

Q18. The official 31 July 2025 Telangana judgment:

A. abolished Speaker jurisdiction. B. directed conclusion of specified proceedings within three months. C. imposed criminal punishment. D. finally settled every future timeline case.

Answer: B.

Explanation: [FACT] It was a case-specific judicial direction, not a constitutional amendment.

Q19. Under Shrimanth Balasaheb Patil, a resignation tendered after the alleged defection:

A. automatically ends the petition. B. transfers the case to ECI. C. does not erase prior defection or the Speaker's jurisdiction. D. creates a permanent election bar.

Answer: C.

Explanation: [FACT] Disqualification relates to the date of the defection act.

Q20. The Speaker's power after disqualification includes:

A. imposing any politically desirable penalty. B. barring all future elections. C. ordering imprisonment. D. no power to add a term-long election-contest ban beyond the Constitution.

Answer: D.

Explanation: [FACT] *Shrimanth* struck down the extra duration/election restriction.

Q21. Articles 75(1B), 164(1B) and 361B:

A. create specified ministerial/remunerative-post disabilities after paragraph 2 disqualification. B. prohibit contesting every election. C. transfer defection cases to the President. D. protect a one-third split.

Answer: A.

Explanation: [FACT] The disabilities last until term expiry or earlier declared re-election, whichever is earlier.

Q22. ECI's role in a Tenth Schedule petition is:

A. first-instance adjudication. B. no paragraph 6 adjudicatory role. C. automatic appellate authority. D. issuing the party whip.

Answer: B.

Explanation: [FACT] ECI has separate symbol and Articles 103/192 functions.

Q23. According to Subhash Desai, symbol and defection proceedings:

A. cannot coexist. B. must be merged in the Supreme Court. C. may proceed concurrently before ECI and Speaker on separate tracks. D. are both decided by the Governor.

Answer: C.

Explanation: [FACT] One proceeding does not automatically suspend the other.

Q24. The Governor's role in a live party split is best stated as:

A. deciding who defected. B. appointing the party Whip. C. deciding the symbol dispute. D. exercising constitutional government-formation/floor-test functions without replacing Speaker or ECI jurisdictions.

Answer: D.

Explanation: [FACT] *Subhash Desai* keeps institutional tracks distinct and requires objective material.

Q25. As controlled for this package, Nabam Rebia:

A. remains a rule whose correctness was referred to seven judges in *Subhash Desai*, with no later verified merits ruling used here. B. was conclusively overruled in 2023. C. concerns nominated members. D. abolished judicial review.

Answer: A.

Explanation: [CURRENT] [LIMIT] A reference is not itself an overruling.

Q26. Which is a direct legal consequence of Tenth Schedule disqualification?

A. criminal conviction. B. vacancy of the seat. C. permanent ban from politics. D. cancellation of party registration.

Answer: B.

Explanation: [FACT] The Schedule concerns membership, with linked constitutional office bars.

Q27. Party expulsion of a legislator:

A. automatically makes the person independent. B. automatically disqualifies under paragraph 2. C. does not by itself erase deemed original-party belonging for Tenth Schedule purposes. D. transfers the seat to the party.

Answer: C.

Explanation: [FACT] *G. Viswanathan* prevents the "unattached" label from defeating the Schedule.

Q28. A post-election office-of-profit or RPA disqualification question for a sitting State member is ordinarily decided by:

A. Speaker under paragraph 6. B. ECI alone. C. Chief Minister. D. Governor under Article 192 after obtaining and acting according to ECI opinion.

Answer: D.

Explanation: [FACT] This differs from the Tenth Schedule route.

Q29. Breach of privilege and defection:

A. are distinct constitutional regimes even though paragraph 8 rules may address wilful rule contravention like privilege. B. are always identical. C. are both decided by ECI. D. always produce permanent disqualification.

Answer: A.

Explanation: [FACT] Their protected interests, grounds and procedures differ.

Q30. The strongest democratic defence of anti-defection is:

A. party leaders should control every speech. B. it protects government stability and the party-linked electoral mandate. C. it eliminates all corruption. D. it makes courts unnecessary.

Answer: B.

Explanation: [ANALYSIS] The defence is substantial but must be balanced against deliberative freedom.

Q31. A narrow-whip reform would most plausibly:

A. abolish parties. B. remove all confidence discipline. C. confine seat-risk directions to confidence, money/supply or core matters. D. give ECI power to legislate.

Answer: C.

Explanation: [ANALYSIS] The goal is calibrated party discipline, not no discipline.

Q32. The safest statement on paragraph 4 controversy is:

A. two-thirds can always defect freely. B. original-party text is irrelevant. C. the issue was conclusively settled in 2026. D. exact text and competing interpretations must be stated; no unverified final 2026 rule should be claimed.

Answer: D.

Explanation: [CURRENT] [LIMIT] The package preserves the unresolved interpretive question.

Q33. Under official Lok Sabha procedure, a compliant petition is followed by:

A. service of copies/comments and a reasonable opportunity before an adverse finding. B. immediate automatic vacancy. C. ECI investigation. D. a criminal trial.

Answer: A.

Explanation: [FACT] The procedure reflects the adjudicatory nature recognised in *Kihoto*.

Q34. Paragraph 6(2)'s deeming of proceedings as legislative proceedings:

A. removes every court power. B. protects against mere procedural-irregularity attacks but not jurisdictional constitutional review. C. makes the Speaker a political party officer. D. eliminates natural justice.

Answer: B.

Explanation: [FACT] *Kihoto* limits, rather than abolishes, review.

Q35. The 2025 routed concept emphasising “political party” is best answered by noting:

A. only legislature-party numbers matter. B. ECI becomes the defection tribunal. C. the Schedule links candidate-setting, membership and directions to the political party. D. political parties are not mentioned in paragraph 2.

Answer: C.

Explanation: [FACT] The phrase is structurally central to the Schedule.

Q36. Which statement about a nominated member is correct?

A. the six-month period runs from nomination. B. a party can be joined only after six months. C. joining at any time is prohibited. D. joining within six months from taking the seat is permitted without paragraph 2(3) disqualification.

Answer: D.

Explanation: [FACT] This is the exact distinction tested by the 2022 route.

Remedial MCQs 37-48 — Same Continuous Rotation

Q37. A member votes against a valid direction but receives condonation from the authorised party authority on day 12. The best conclusion is:

A. paragraph 2(1)(b) disqualification does not arise on that vote because condonation occurred within 15 days. B. disqualification is automatic at the moment of voting. C. only ECI can condone. D. condonation must occur before voting.

Answer: A.

Explanation: [FACT] Prior permission and post-vote condonation within 15 days are separate textual protections.

Q38. A group containing exactly one-third of a legislature party claims a split in 2026. It is:

A. protected by old paragraph 3. B. not protected because paragraph 3 stands omitted. C. automatically a merger. D. protected if the Governor agrees.

Answer: B.

Explanation: [FACT] The one-third split defence ended on 1 January 2004.

Q39. Two-thirds of a legislature party announce that they have “merged”, while the original party denies any merger. The best exam answer is:

A. they are automatically protected. B. they are automatically criminals. C. apply paragraph 4’s exact original-party and deeming text and identify the unresolved interpretive controversy. D. ECI must disqualify them.

Answer: C.

Explanation: [LIMIT] A categorical numerical shortcut would erase the legal controversy.

Q40. A court is asked to stop the Speaker from deciding merely because an adverse decision is feared. The Kihoto baseline is:

A. automatic injunction. B. ECI reference. C. Governor’s permission. D. no ordinary quia timet intervention before decision.

Answer: D.

Explanation: [FACT] Courts generally do not pre-empt the constitutionally assigned adjudicator.

Q41. A Speaker sits on a petition until the Assembly term is nearly over. Which chain is most relevant?

A. *Rajendra Singh Rana* -> *Keisham* -> judicial direction against disabling inaction. B. Article 352 -> emergency. C. ECI Symbols Order only. D. parliamentary privilege exclusively.

Answer: A.

Explanation: [FACT] Delay cannot be used to frustrate the Schedule’s constitutional objective.

Q42. A disqualified member wins a by-election before the old term ends. The 91st-Amendment office disability:

A. necessarily lasts for life. B. ends on declared re-election if that occurs earlier than original term expiry. C. becomes criminal punishment. D. is decided by the party whip.

Answer: B.

Explanation: [FACT] Articles 75(1B), 164(1B) and 361B use the earlier-event formula.

Q43. An expelled member joins another political party. The most relevant authority is:

A. *Kesavananda Bharati*. B. *Bommai*. C. *G. Viswanathan*. D. *Minerva Mills*.

Answer: C.

Explanation: [FACT] Deemed original-party belonging continues for Tenth Schedule purposes.

Q44. Which proposition is outside Subhash Desai?

A. political party appoints the Whip. B. Speaker and ECI tracks may proceed concurrently. C. split defence is unavailable. D. the Supreme Court itself disqualified every disputed member.

Answer: D.

Explanation: [LIMIT] The Court left first-instance disqualification to the Speaker.

Q45. The best way to write paragraph 7 is:

A. "It textually bars courts, but *Kihoto* invalidated it for want of State ratification." B. "It is fully operative." C. "It was deleted by Parliament." D. "It concerns merger."

Answer: A.

Explanation: [FACT] This preserves both text and legal effect.

Q46. A proposal to vest defection decisions in the President/Governor on ECI advice would:

A. describe existing paragraph 6. B. require legal/constitutional change and mirrors the Articles 103/192 model. C. automatically solve every bias concern. D. be implemented by a party whip.

Answer: B.

Explanation: [ANALYSIS] [LIMIT] It shifts institutional risk; it is not current law.

Q47. Which reform most directly addresses loss of ordinary legislative deliberation?

A. broader whips. B. longer Speaker delay. C. limiting binding whips to survival/core votes. D. making defection criminal.

Answer: C.

Explanation: [ANALYSIS] It protects necessary stability while restoring issue-wise judgment.

Q48. The best final verdict on the law is:

A. wholly useless. B. perfectly effective. C. unconstitutional in its entirety. D. justified in principle but weakened by broad whips, group/resignation routes and partisan delay.

Answer: D.

Explanation: [ANALYSIS] A graded verdict recognises both stability gains and design failures.

Visual 73 — Solved-Mains Evidence Bank

Issue	Constitutional anchor	Case/reform anchor
grounds	paragraph 2	<i>Ravi S. Naik</i>
merger	paragraph 4	<i>Rajendra Singh Rana</i> analogy; current controversy
Speaker	paragraph 6	<i>Kihoto</i> , <i>Keisham</i>
resignation	Articles 101/190	<i>Shrimanth</i>
whip authority	paragraph 2(1)(b)	<i>Subhash Desai</i>
office consequence	75(1B), 164(1B), 361B	91st Amendment
reform	constitutional amendment	Goswami, Law Commission, <i>Keisham</i>

Caption: Each model answer should select only evidence that advances its thesis.

Original Mains 1 — Grounds and Member Types (10 marks, 150 words)

Question: Explain the grounds of disqualification under the Tenth Schedule and the distinct treatment of independent and nominated members.

Model solution

Thesis: [FACT] Paragraph 2 uses different rules because party-ticket, independent and nominated members enter the House with different electoral relationships.

1. [CLAIM] A party member faces two grounds. [EVIDENCE] Paragraph 2(1)(a) covers voluntarily giving up membership; *Ravi S. Naik* permits inference from conduct. Paragraph 2(1)(b) covers contrary voting/abstention without prior permission and without condonation within 15 days. [ANALYSIS] The first protects continuing allegiance; the second enforces authorised voting discipline. [LIMIT] every speech or dissent is not a whip

breach.

2. [CLAIM] An independent member has the strictest joining rule. [EVIDENCE] Paragraph 2(2) disqualifies on joining any party after election. [ANALYSIS] The voter chose a non-party candidate. [LIMIT] no six-month window exists.
3. [CLAIM] A nominated member receives a limited choice period. [EVIDENCE] Paragraph 2(3) disqualifies only for joining after six months from taking the seat. [ANALYSIS] The text permits early political alignment. [LIMIT] the clock does not run from nomination.

Verdict: The Schedule protects the electoral identity through category-specific rules rather than one universal prohibition.

Why this earns marks: It states every ground, supplies the 15-day and six-month controls, and uses *Ravi S. Naik* with a qualification.

Original Mains 2 — Political Party and Legislature Party (10 marks, 150 words)

Question: Distinguish “political party” from “legislature party” under the Tenth Schedule. Why does the distinction matter?

Model solution

Thesis: [FACT] A political party is the organisational/electoral entity; a legislature party is its group of members within a particular House.

- [CLAIM] Electoral belonging flows from the political party. [EVIDENCE] Paragraph 2 deems an elected member to belong to the party that set the member up. [ANALYSIS] Voter mandate cannot be rewritten only by House-level numbers. [LIMIT] membership disputes still require evidence.
- [CLAIM] Voting authority flows from the political party. [EVIDENCE] Paragraph 2(1)(b) recognises its direction or an authorised person's direction; *Subhash Desai* holds that the political party appoints the Whip and Leader. [ANALYSIS] A factional legislature majority cannot manufacture a rival whip. [LIMIT] the Speaker must identify authorisation through inquiry and party rules.
- [CLAIM] Legislature-party numbers matter in paragraph 4. [EVIDENCE] two-thirds agreement triggers the merger deeming rule. [ANALYSIS] This creates the present organisational-versus-numerical controversy. [LIMIT] two-thirds is not a free-standing right to defect.

Verdict: The distinction protects party mandate while exposing the unresolved tension in the merger exception.

Why this earns marks: It defines, applies and qualifies the distinction through both paragraph 2 and paragraph 4.

Original Mains 3 — Speaker as Adjudicator (10 marks, 150 words)

Question: Evaluate the constitutional position of the Speaker as the adjudicator of defection petitions.

Model solution

Thesis: [FACT] Paragraph 6 entrusts the Speaker/Chairman with first-instance decision, but judicial doctrine treats that role as adjudicatory rather than politically immune.

1. [CLAIM] The arrangement keeps the question within the House. [EVIDENCE] Paragraph 6 declares the decision final and provides a House-elected substitute when the Speaker is personally concerned. [ANALYSIS] institutional familiarity may aid speed. [LIMIT] continued party affiliation creates perceived bias.
2. [CLAIM] Finality is constitutionally controlled. [EVIDENCE] *Kihoto Hollohan* classifies the Speaker as a tribunal and permits review for constitutional breach, mala fides, natural-justice violation and perversity. [ANALYSIS] legality survives the finality clause. [LIMIT] review is not a full appeal.
3. [CLAIM] delay is a structural weakness. [EVIDENCE] *Keisham* identifies an ordinary three-month outer limit and proposes an independent tribunal. [ANALYSIS] delayed justice can alter government survival. [LIMIT] no express Schedule deadline or tribunal amendment exists.

Verdict: The current model is legally reviewable but institutionally fragile; neutral, time-bound adjudication is the stronger design.

Why this earns marks: It balances constitutional text, judicial control, practical bias and reform within the word limit.

Original Mains 4 — Kihoto and Judicial Review (15 marks, 250 words)

Question: “Kihoto Hollohan saved the anti-defection law from both invalidation and unaccountability.” Discuss.

Model solution

Thesis: [FACT] *Kihoto* upheld the central Tenth Schedule design while invalidating its attempted total ouster of courts, producing a controlled compromise between House adjudication and constitutional review.

Saved from invalidation

- [CLAIM] The majority rejected the argument that vesting power in the Speaker necessarily destroyed the basic structure. [EVIDENCE] It emphasised the high constitutional office and retained paragraph 6. [ANALYSIS] This preserved the 52nd Amendment's anti-defection mechanism. [LIMIT] the minority's bias concern later informed reform debate.

Saved from unaccountability

- [CLAIM] Paragraph 7 could not validly exclude Supreme Court/High Court jurisdiction. [EVIDENCE] It affected Articles 136, 226 and 227 but lacked ratification by half the States under Article 368(2). [ANALYSIS] amendment procedure protected federal participation and judicial review. [LIMIT] paragraph 7 remains printed but legally invalid.
- [CLAIM] The Speaker is a tribunal. [EVIDENCE] Review survives for constitutional mandate violation, mala fides, natural-justice breach and perversity. [ANALYSIS] a political office exercising judicial power must give a legally defensible order. [LIMIT] review is jurisdictional, not a routine merits appeal.
- [CLAIM] First-instance authority remains with the Speaker. [EVIDENCE] ordinary quia timet/interlocutory intervention is restricted. [ANALYSIS] this respects constitutional allocation. [LIMIT] *Keisham* later clarifies that courts may aid prompt decision against inaction.

Verdict: *Kihoto* did not perfect the law; it constitutionalised accountability around a structurally partisan decider. Later delay cases expose why judicial review is necessary but not sufficient.

Why this earns marks: It answers both halves of the quotation, explains ratification, review grounds and timing, and adds a measured limitation.

Original Mains 5 — Merger Exception (15 marks, 250 words)

Question: “The merger exception risks converting a prohibition on defection into a numerical licence for wholesale defection.” Critically examine.

Model solution

Thesis: [FACT] Paragraph 4 protects genuine party merger, but its two-thirds deeming rule can be used to present coordinated legislative migration as constitutional realignment.

Why protection exists

- [CLAIM] Parties may genuinely reorganise. [EVIDENCE] Paragraph 4 protects members accepting another/new party and those rejecting the merger and functioning separately. [ANALYSIS] A rigid individual-only rule could punish authentic collective realignment. [LIMIT] protection must remain tied to merger, not convenience.

Why it becomes a loophole

- [CLAIM] The threshold rewards group engineering. [EVIDENCE] not less than two-thirds of the legislature party triggers the deeming rule after the one-third split defence was deleted. [ANALYSIS] actors rationally aggregate numbers rather than defect individually. [LIMIT] threshold alone does not answer the original-political-party language.
- [CLAIM] Organisational mandate may be bypassed. [EVIDENCE] Paragraph 4(1) speaks of the original political party merging; *Subhash Desai* elsewhere stresses political-party authority over mere legislature factions. [ANALYSIS] voter choice is weakened if House numbers can rewrite party identity. [LIMIT] paragraph 4(2)'s deeming fiction creates a genuine interpretive dispute.
- [CLAIM] *Rajendra Singh Rana* supplies a cautionary analogy. [EVIDENCE] under old paragraph 3, legislator numbers did not themselves prove an original-party split. [ANALYSIS] organisational reality matters. [LIMIT]

that case interpreted the now-omitted split rule, not a final modern merger rule.

Reform: Clarify organisational consent/evidence, redesign or remove the defence, and protect only transparent, genuine mergers followed by electoral accountability.

Verdict: Paragraph 4 should remain an exception proved strictly, not a numerical safe harbour presumed automatically.

Why this earns marks: It preserves the textual controversy, gives both rationales and avoids claiming an unverified 2026 settlement.

Original Mains 6 — Resignation and Office Bars (15 marks, 250 words)

Question: Analyse the relationship between resignation, defection disqualification and the office disabilities introduced by the 91st Amendment.

Model solution

Thesis: [FACT] Resignation and disqualification are distinct vacancy mechanisms; the 91st Amendment prevents a person adjudged a defector from immediately converting seat loss into ministerial or remunerative office.

Resignation does not erase prior defection

- [CLAIM] Liability is tied to the defection date. [EVIDENCE] *Shrimanth Balasaheb Patil* holds that a later resignation does not vaporise the taint or terminate Speaker jurisdiction. [ANALYSIS] otherwise a member could defeat paragraph 2 by timing a resignation. [LIMIT] the Speaker still must prove the ground through fair process.

Disqualification does not create an unlimited election ban

- [CLAIM] The Speaker's power is text-bound. [EVIDENCE] *Shrimanth* struck down the direction barring re-election until the Assembly term ended. [ANALYSIS] desirability cannot supply a qualification absent from the Constitution/RPA. [LIMIT] re-election does not retrospectively validate the earlier conduct.

91st-Amendment disabilities

- [CLAIM] Articles 75(1B) and 164(1B) bar ministerial appointment; Article 361B bars a remunerative political post. [EVIDENCE] each runs from disqualification until original term expiry or earlier declared re-election. [ANALYSIS] this targets the office reward that can motivate defection. [LIMIT] it is not criminal punishment or lifetime exclusion.

Verdict: The scheme now follows a calibrated sequence: adjudicate past defection despite resignation, vacate the seat, impose temporary office disability, but preserve the electorate's power to return the candidate.

Why this earns marks: It separates three legal mechanisms, uses the controlling case and states the exact duration formula.

Original Mains 7 — Effectiveness and Reform (20 marks, 300 words)

Question: Has the anti-defection law strengthened parliamentary democracy or reduced legislators to agents of party leadership? Critically examine and suggest reforms.

Model solution

Thesis: [ANALYSIS] The Tenth Schedule strengthened government stability and party-linked electoral accountability, but its broad whip, merger incentives and partisan adjudication weakened deliberative representation. It is a necessary principle with an overbroad and poorly enforced design.

Democratic gains

1. [CLAIM] It raises the cost of opportunistic floor-crossing. [EVIDENCE] the 52nd Amendment constitutionalised seat loss for voluntary abandonment and whip defiance. [ANALYSIS] this protects the voter from office-driven mandate trading. [LIMIT] it cannot eliminate incentives.
2. [CLAIM] It stabilises responsible government. [EVIDENCE] confidence arithmetic becomes more predictable. [ANALYSIS] ministries can implement programmes. [LIMIT] stability without scrutiny may become executive dominance.

3. [CLAIM] It recognises political parties as constitutional actors. [EVIDENCE] candidate-setting, membership and directions all refer to the political party. [ANALYSIS] party labels shape electoral choice. [LIMIT] party leadership may be internally undemocratic.

Democratic costs

1. [CLAIM] Broad whips chill judgment. [EVIDENCE] paragraph 2(1)(b) is not confined to confidence or money votes. [ANALYSIS] legislators become numbers rather than deliberators. [LIMIT] core survival votes justify stronger discipline.
2. [CLAIM] Group and resignation routes displace individual defection. [EVIDENCE] paragraph 4 and *Shrimanth* reveal merger/resignation strategies. [ANALYSIS] the law redirects rather than removes defections. [LIMIT] genuine merger and resignation remain legitimate constitutional possibilities.
3. [CLAIM] Speaker timing can determine political outcomes. [EVIDENCE] *Kihoto*, *Rajendra Singh Rana*, *Keisham* and the 2025 Telangana direction. [ANALYSIS] delayed adjudication can make final review hollow. [LIMIT] complex cases may require justified extension.

Reforms

- narrow binding whips to confidence/no-confidence, money/supply and clearly defined core commitments;
- create an independent tribunal or a carefully insulated President/Governor-on-ECI-advice model;
- enact a fixed deadline with reasoned exceptional extension;
- redesign paragraph 4 to require transparent proof of genuine organisational merger;
- require recorded party authorisation and strengthen internal party democracy;
- preserve judicial review and natural justice.

Verdict: Anti-defection should protect the mandate at moments of government survival, not extinguish representative judgment throughout legislative life.

Why this earns marks: It balances achievement and harm, uses eight named anchors, explains mechanisms and offers matched reforms.

Original Mains 8 — Maharashtra Institutional Conflict (20 marks, 300 words)

Question: Using *Subhash Desai*, analyse how the Tenth Schedule distributes authority among the political party, legislature party, Speaker, Election Commission, Governor and courts.

Model solution

Thesis: [FACT] *Subhash Desai* rejects a single-institution solution to a party split. It assigns each institution a legally bounded function and prevents legislative headcount from silently replacing political-party authority.

Political party and legislature party

- [CLAIM] The political party controls authorised legislative direction. [EVIDENCE] it appoints the Whip and Leader; paragraph 2 links the member to the party that set the candidate up. [ANALYSIS] a factional legislature majority cannot self-authorise a rival whip. [LIMIT] the Speaker must determine authentic authority through the party constitution and evidence.
- [CLAIM] Legislature-party numbers remain relevant but not sovereign. [EVIDENCE] paragraph 4 uses the two-thirds threshold. [ANALYSIS] numbers serve a defined constitutional defence. [LIMIT] they do not automatically settle party identity.

Speaker and ECI

- [CLAIM] The Speaker decides paragraph 6 petitions. [EVIDENCE] *Kihoto* tribunal doctrine and *Subhash Desai* first-instance rule. [ANALYSIS] membership liability remains House-linked. [LIMIT] decisions must be timely and reviewable.
- [CLAIM] ECI decides the separate Symbols Order dispute. [EVIDENCE] *Subhash Desai* permits concurrent proceedings. [ANALYSIS] symbol recognition and defection ask different legal questions. [LIMIT] neither result mechanically controls the other.

Governor and courts

- [CLAIM] The Governor may use constitutionally relevant objective material for government formation/floor test, but cannot decide defection. [EVIDENCE] the impugned floor-test call lacked objective material; later government invitation after vacancy was upheld. [ANALYSIS] majority testing cannot become an indirect party-recognition mechanism. [LIMIT] facts and timing matter.
- [CLAIM] Courts police boundaries. [EVIDENCE] judicial review remains; the Court did not ordinarily decide disqualifications first instance. [ANALYSIS] constitutional supervision preserves distributed authority. [LIMIT] *Nabam Rebia* correctness remains referred.

Verdict: The judgment's enduring principle is jurisdictional discipline: political authority, legislative grouping, membership adjudication, symbol recognition and government formation must interact without collapsing into one another.

Why this earns marks: It addresses all six institutions, uses exact holdings and preserves the unresolved *Nabam Rebia* issue.